

21STCV30098 21STCV30098

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-19

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Case Number: 21STCV30098 Hearing Date: August 19, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 19, 2026

Case Name: Llanos v. Sedgwick Formally York Risk, et al.

Case No.: 21STCV30098

Matter: Motion to Compel

Moving Party: Plaintiff Jonathan Alvarez Llanos

Responding Party: Defendant American Zurich Insurance Company

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action in which Plaintiff Jonathan Alvarez Llanos alleges, among other things, that his insurer acted in bad faith while distributing funds related to his underinsured motorist claim.

Plaintiff now seeks to compel Defendant American Zurich Insurance Company to produce documents at its deposition—specifically as to request no. 13, which seeks: “All DOCUMENTS RELATED TO evaluation of the CLAIM.”

Defendant American Zurich Insurance Company is ordered to produce the correct, non-duplicative evaluation materials/worksheets for passenger Lalanika Narasinha Arachchige within 10 days of this order.

To the extent Defendant contends any responsive evaluation documents for Claim No. LA0107794A4 or Claim No. FPQ4554 were previously produced within its prior 672-page production, Defendant is ordered to provide Plaintiff with specific Bates numbers identifying those responsive documents within 10 days.

To the extent Defendant contends that no evaluation documents exist for Plaintiff Alvarez’s UIM claim, Defendant is ordered to serve a comprehensive, verified declaration under penalty of perjury from a person with knowledge within 10 days detailing: whether the document(s) ever existed and the factual basis for their non-existence or loss. Request No. 13 is not limited to forms labeled “Bodily Injury Worksheets”; it encompasses any document evaluating the UIM claim or documenting a decision not to evaluate it. If no evaluation materials exist because Defendant did not perform an individual evaluation, Defendant must state that unequivocally under oath.

The Motion is granted in part as set forth herein. In light of the IDC held by the Court and parties on August 13, 2026, the court will not award any sanctions

Moving party to give notice.